

**BEFORE THE
FEDERAL MARITIME COMMISSION**

CertiFit, Inc.,

Complainant,

v.

Evergreen Shipping Agency (America) Corp.,
as agent for Evergreen Line, Evergreen Group
d/b/a Evergreen Line,

Respondent.

DOCKET NO. 23-03

Errata to CertiFit, Inc's Brief

CertiFit, Inc., by and through its counsel of record, respectfully submits this Errata to include a table of contents and authorities that was unintentionally omitted in CertiFit's Brief, as well as corrections and additions to several citations to CertiFit's appendix that was filed in this proceeding on November 30, 2023. This is necessary as the Brief submitted has "CF PFF 4" and "CF PFF 5" listed twice, which has shifted the numbering listed in the submitted Brief from CF PFF 1 – CF PFF 84 to CF PFF 1 – CF PFF 83. Additionally, "CF PFF 70" was missing, so the attached brief corrects all deficiencies and includes the updated citations throughout the brief.

Attached to this submission is CertiFit's Brief with the updated table of contents and authorities, and a separate attachment for its Proposed Findings of Fact, with revised citations. Inclusion of the Errata will assist in avoiding confusion of the citations included in CertiFit's Brief which cross-reference to the appendix. Below, is a list of the citations that have been corrected:

- Page 6, Bennett response, **CX7-0545, CF03174**
- Page 9, CF PFF 5, revised to **"CF PFF Nos. 12-26, infra."**

- Page 10, CF PPF 4 (following CF PPF 5; corrected to “**CF PPF 6**”), adds citation to 2020 Service Contract referenced **CX4-0480-0490**.
- Page 10, second CF PPF 5 revised “**CF PPF 7**,” and revised cite to referenced contracts, **CX7-0522-0529**.
- Page 10, CF PPF 6 revised to “**CF PPF 8**” citation to 2020 Service Contract added CX7-0528-0530.
- Page 10, CF PPF 7 revised to “**CF PPF 9**.”
- Page 10, CF PPF 8, revised to “**CF PPF 10**.”
- Page 10, CF PPF 9, revised to “**CF PPF 11**.”
- Page 10, CF PPF 10, revised to “**CF PPF 12**.”
- Page 11, CF PPF 11, revised to “**CF PPF 13**.”
- Page 11, CF PPF 12, revised to “**CF PPF 14**.”
- Page 11, CF PPF 13, revised to “**CF PPF 15**.”
- Page 11, CF PPF 14, revised to “**CF PPF 16**.”
- Page 11, CF PPF 15, revised to “**CF PPF 17**.”
- Page 11, CF PPF 16, revised to “**CF PPF 18**.”
- Page 12, CF PPF 17, revised to “**CF PPF 19**.”
- Page 12, CF PPF 18, revised to “**CF PPF 20**.”
- Page 12, CF PPF 19, revised to “**CF PPF 21**.”
- Page 12, CF PPF 20, revised to “**CF PPF 22**” and added citations “**CX4-0481, 0487**.”
- Page 12, CF PPF 21, revised to “**CF PPF 23**” and added citation “**CX4-0480**.”
- Page 12, CF PPF 22, revised to “**CF PPF 24**.”
- Page 12, CF PPF 23, revised to “**CF PPF 25**.”

- Page 13, CF PPF 24, revised to “**CF PFF 26.**”
- Page 13, CF PPF 25, revised to “**CF PFF 27.**”
- Page 13, CF PPF 26, revised to “**CF PFF 28**” and added citation “*See generally CX4.*”
- Page 13, CF PPF 27, revised to “**CF PFF 29**” and added citation “**(CX6-0508, ¶ 24, CX4-0486).**”
- Page 13, CF PPF 28, revised to “**CF PFF 30.**”
- Page 13, CF PPF 29, revised to “**CF PFF 31**” and added citation “**(CX13-0798, § 3.2.2)**” for contract provision cited.
- Pages 13-14, CF PPF 30, revised to “**CF PFF 32.**”
- Page 14, CF PPF 31, revised to “**CF PFF 33.**”
- Page 14, CF PPF 32, revised to “**CF PFF 34**” and added citation “**CX7-0544-0545.**”
- Page 14, CF PPF 33, revised to “**CF PFF 35.**”
- Page 14, CF PPF 34, revised to “**CF PFF 36.**”
- Pages 14-15, CF PPF 35, revised to “**CF PFF 37.**”
- Page 15, CF PPF 36, revised to “**CF PFF 38.**”
- Page 15, CF PPF 37, revised to “**CF PFF 39**” and added a citation to the full range indicated “**CX7-0546-0555.**”
- Page 15, CF PPF 38, revised to “**CF PFF 40**” and added citation “**CF3179.**”
- Page 15, CF PPF 39, revised to “**CF PFF 41**” and added citation “**CX13-0816.**”
- Page 15, CF PPF 40, revised to “**CF PFF 42.**”
- Page 15, CF PPF 41, revised to “**CF PFF 43**” and revised citation to “*See CF PFF 30, supra.*”

- Page 16, CF PPF 42, revised to “**CF PFF 44**” and revised citation to “**CX7-0538.**”
- Page 16, CF PPF 43, revised to “**CF PFF 45**” and revised citation to “*See* **CF PPF 30, supra.**”
- Page 16, CF PPF 44, revised to “**CF PFF 46**”
- Page 16, CF PPF 45, revised to “**CF PFF 47.**”
- Page 16, CF PPF 46, revised to “**CF PFF 48**” and revised citation to “**(CX7-0558).**”
- Page 17, CF PPF 47, revised to “**CF PFF 49.**”
- Page 17, CF PPF 48, revised to “**CF PFF 50.**”
- Page 17, CF PPF 49, revised to “**CF PFF 51.**”
- Page 17, CF PPF 50, revised to “**CF PFF 52.**”
- Page 17, CF PPF 51, revised to “**CF PFF 53**” and added citation to “**...CX1; CX80**”.
- Page 18, CF PPF 52, revised to “**CF PFF 54**” and added citation to “**CX5-0491.**”
- Page 18, CF PPF 53, revised to “**CF PFF 55.**”
- Page 18, CF PPF 54, revised to “**CF PFF 56.**”
- Page 18, CF PPF 55, revised to “**CF PFF 57**” and added citation to “**CX4-0486.**”
- Page 18, CF PPF 56, revised to “**CF PFF 58.**”
- Page 18, CF PPF 57, revised to “**CF PFF 59**” and revised to “**Id.**”
- Page 18, CF PPF 58, revised to “**CF PFF 60.**”
- Page 19, CF PPF 59, revised to “**CF PFF 61.**”
- Page 19, CF PPF 60, revised to “**CF PFF 62.**”
- Page 19, CF PPF 61, revised to “**CF PFF 63**” and added “**Id.**”

- Page 19, CF PPF 62, revised to “**CF PFF 64**” and adds citation to “**Feb. 11, 2021 spreadsheet entry, CX13-0820; CX4-0486).**”
- Page 19, CF PPF 63, revised to “**CF PFF 65**” and revises citation to “**(CX7-0582-0584).**”
- Page 19, CF PPF 64, revised to “**CF PFF 66**” and revises citation to “***Id. See also CX13-0816-0821; CX9.***”
- Page 19, CF PPF 65, revised to “**CF PFF 67**” and revises citation to “**(Compl. ¶ 38; CX6-0510; see generally, CX1-3, CX8).**”
- Page 19, CF PPF 66, revised to “**CF PFF 68**” and adds citation to “**(Compl. ¶ 38, CX6-0510; CF PPF Nos. 30-60, supra).**”
- Page 20, CF PPF 67, revised to “**CF PFF 69**” and adds citation to “**(Compl. ¶ 11; CX6-0505; CX4-0487; CF PFF Nos. 42-45, supra).**”
- Page 20, CF PPF 68, revised to “**CF PFF 70**” and adds citation to “**(Compl. ¶¶ 24, 35; CX6-0508-0510; CX4-0486; CF PFF Nos. 54-62, supra).**”
- Page 20, CF PPF 69, revised to “**CF PFF 71**” and adds citation to “**(Compl. ¶¶ 9-11; CX6-0505; CX13-0816-0821).**”
- Page 20, CF PPF 70, revised to “**CF PFF 72**” and adds citation to “**(CX8; CX1-CX3).**”
- Page 20, CF PPF 71 is missing, but CertiFit’s revised brief includes “Evergreen’s continuous and systematic practice of withholding contracted-for space to take advantage of higher prices being paid on the spot market is a violation of the Shipping,” which was included as “**CF PFF 69.**”
- Page 20, CF PPF 72, revised to “**CF PFF 73.**”
- Page 20, CF PPF 73, revised to “**CF PFF 74**” and adds citation “**(CX8; CX1-CX3).**”
- Page 20, CF PPF 74, revised to “**CF PFF 75**” and revised to “**(CX4-0486).**”

- Page 21, CF PFF 75, revised to “**CF PFF 76**” and revised to “**Id.**”
- Page 21, CF PFF 76, revised to “**CF PFF 77**” and revised to “**(CX4-0841; CX13-0798-0799).**”
- Page 21, CF PFF 77, revised to “**CF PFF 78**” and revised to “**(Compl. ¶¶ 9-10; CX1, CX2).**”
- Page 21, CF PFF 78, revised to “**CF PFF 79**” and revised to “**CX7-0559-0579; CX1).**”
- Page 21, CF PFF 79, revised to “**CF PFF 80**” and revised to “**(CX8-0589; CX1).**”
- Page 21, CF PFF 80, revised to “**CF PFF 81**” and revised to “**(CX3).**”
- Page 21, CF PFF 81, revised to “**CF PFF 82**” and revised to “**(CX8-0590-0591; CX3).**”
- Page 21, CF PFF 82, revised to “**CF PFF 83**” and revised to “**(CX8-0589-0590; CX2).**”
- Page 21, CF PFF 83, revised to “**CF PFF 84.**”

Dated: December 1, 2023

Respectfully Submitted
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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 1st day of December, 2023, the foregoing Brief was served via electronic mail on:

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